

Athens, 11-12-2024

Protocol No.: 3534

DECISION 51/2024

(Section)

The Hellenic Data Protection Authority convened at the invitation of its President in a meeting via teleconference on Wednesday, 13-11-2024 at 10:00, in order to examine the case referred to in the background of this document. Present were the Deputy President of the Authority, Georgios Batzalexis, in the absence of the President of the Authority Konstantinos Menoudakis, the alternate members of the Authority, Dimosthenis Bougioukas and Maria Psalla, replacing the regular members Konstantinos Lamprinoudakis and Grigorios Tsolias, who, although duly summoned, did not attend due to conflict, as well as Nikolaos Libos, alternate member of the Authority, as Rapporteur. Present without voting rights were Stefania Plota, special scientist-lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department of the Authority, as secretary. The Authority took into consideration the following:

The Authority received the application with protocol number G/EIS/5236/14-06-2024 from A, in which the applicant requests the reconsideration of the act of archiving dated 12-04-2024, which was communicated to her with the transmittal document with protocol number G/EX/1332/10-05-2024 from the Authority, regarding her complaint with protocol number G/EIS/7570/19-11-2021.

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Specifically, the Authority received the complaint with protocol number G/EIS/7570/19-11-2021 from A against the company "TEA CUPS O.E." for violation of the provisions under the Authority's jurisdiction. In particular, the complainant was a partner, co-manager, and co-representative of the complained company until ..., when she resigned and left the company. After her departure from the company, the complainant states that she no longer had access to her previous professional email address bearing her name -...@teacups.gr- which the company kept active, continued to use, and received the complainant's correspondence, gaining knowledge of the emails sent to her through this address by various senders, the content of which was never made known to her. Furthermore, in the proposals submitted on ... before the Single-Member Court of First Instance of Athens in view of the discussion of the lawsuit filed by the company against the complainant, the company stated that it opened and read additional emails sent to the disputed email address after her departure from the company and presented a multitude of emails that the complainant exchanged with third parties through the aforementioned email address during her participation in the company as a partner and co-manager. The complainant states that the above constitutes a violation of the confidentiality of communications, which is protected by Article 19 paragraph 1 of the Constitution and by Article 4 of Law 3471/2006 on the protection of personal data and privacy in the field of electronic communications, and in particular Articles 5 of Law 3471/2006 and 6 paragraph 1 of the GDPR. In her extrajudicial protest dated ..., among other things, she called upon B, individually and as a partner and liquidator of the complained company, to inform her, on the one hand, whether he has abolished her email address and when, and in the negative case, how he abolished and excluded it, and on the other hand, the content of all emails that have been sent to the aforementioned email address from ... until the definitive cessation of its operation.

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The Authority, after examining the above complaint, issued the aforementioned act of archiving dated 12-04-2024 with the reason for its non-submission to the Authority's jurisdiction: "Because the complained processing of personal data is included in the subject matter of the ... complaint that the complainant has submitted against the liquidator of the complained company and involved B. However, when personal data has been submitted to a judicial authority and is in the file of the case, the Authority does not have jurisdiction, because the file of the pending case does not constitute a record, subject to the jurisdiction and control of the Authority, as the Authority has already ruled in previous decisions (see among others decision 1/2020, decision 147/2001). Furthermore, according to

the second sentence of recitals 20 of the GDPR, "The jurisdiction of supervisory authorities should not cover the processing of personal data when courts act in their judicial capacity, in order to ensure the independence of judicial officials in the exercise of their judicial duties, including decision-making." Regarding the legality of the collection of personal data and their use when a trial is pending or an investigation or inquiry is being conducted, the judicial or prosecutorial official is competent to assess, within the framework of evaluating the evidence or investigative material, whether the collection and use of the data is in accordance with the provisions of the law, given that the right to the protection of personal data of the individual is also constitutionally enshrined in Article 9A of the Constitution." Subsequently, the complainant and now applicant submitted against the above act the application for remedy with protocol number G/EIS/5236/14-06-2024, in which she claims that the act is defective and was erroneously issued by the Authority, as it was initially issued in violation of the provisions of the Authority's Operating Regulation since Article 4 paragraph 3 states that the archiving of complaints that are characterized as inadmissible, vague, or manifestly unfounded falls under the jurisdiction of the President, while Article 7 indicates that the stage of examining the Authority's jurisdiction precedes any other stage, much less that of the...

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The invitation to a hearing of the involved parties, as provided in Article 9 of the Regulation, namely for the parties to present their views, is contingent upon the Authority having verified its jurisdiction. Furthermore, the complainant states that the Authority erroneously deemed itself incompetent to adjudicate the case solely because the acts being complained of are included in the subject matter of the complaint against B, resulting in the formed file of the criminal case not constituting a record, as both the violation of the confidentiality of communications and the unlawful processing of personal data occurred through the acts mentioned in the complaint, which precede the filing of the complaint, just as the complaint itself precedes the filing of the complaint. Finally, the complainant reiterates her request for the Authority to impose the relevant administrative sanctions and to compel the respondent to cease the operation of her email address and to inform her of the content of all emails that have been omitted from the aforementioned address until the cessation of its operation.

Following this, the Authority summoned, with documents numbered Γ/ΕΞ/3077/07-11-2024 and Γ/ΕΞ/3078/07-11-2024, the complainant and the respondent company under liquidation, respectively, as lawfully represented, to a hearing via teleconference before the Authority on 23-10-2024, in order to examine the aforementioned matters. During the meeting, the request for postponement from the respondent company was discussed, which was accepted by the Department, and a new date for discussion was set for 13-11-2024. Present at this meeting were the complainant A along with her attorneys Georgios Theodoropoulos (AM D.S.P. ...) and Stefanos Apergis (AM D.S.P. ...), and on behalf of the respondent company, B, its legal representative, along with attorneys Ioannis Baveas (AM D.S.A. ...) and Fotini Dimopoulou (AM D.S.A. ...). During this meeting, the attendees presented their views regarding the application for review under consideration.

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The Authority, after examining the elements of the file, having heard the rapporteur and the clarifications of the assistant rapporteur, who attended without voting rights, after thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Since, according to Article 24 paragraph 1 of Law 2690/1999 (Administrative Procedure Code), it is stipulated that "If the relevant provisions do not provide for the possibility of exercising, according to the next article, a special administrative or administrative appeal, the interested party, for the restoration of material or moral damage to their legal interests caused by an individual administrative act, may, for any reason, by application, request either from the administrative authority that issued the act, the revocation or modification of it (application for review), or from the authority that supervises the one that issued the act, its annulment (hierarchical appeal)." According to the meaning of the provision, the application for review aims at the revocation or modification of the contested individual administrative act for legal or factual defects thereof that relate to the regime under which it was issued.

2. Since, with the above provisions of Article 24 of the Administrative Procedure Code, a right is established for every "interested" administrative party who has suffered material or moral damage from an individual administrative act, to appeal against the authority that issued the said act before resorting to judicial protection (simple administrative appeal, otherwise application for review). This is an "informal" administrative appeal in contrast to the formal "special" and "administrative" appeals of Article 25 of the Administrative Procedure Code. The said appeal requests the revocation or modification of the aforementioned individual administrative act, in order to restore the material or moral damage caused to the appellant by the administrative act, in those cases where the law does not provide for the possibility of exercising the above appeals of Article 25 of the Administrative Procedure Code.

3. Since the Authority rejects applications for review when they do not invoke or present new and critical factual elements for the case.

1 See, for example, Decision No. 73/2018 of the Authority.

2 See, for example, APDPX 53/2021, 49/2021, 38/2021, 6/2021, 39/2019, 91/2015.

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Since with the application for review under consideration, various issues are raised, as outlined in the above historical account of the present, without, however, invoking new and critical factual elements for the case, but only legal claims. Indeed, in the application for review under consideration, the request of the complaint is repeated, and an interpretative approach to the regulatory provisions that delineate the Authority's jurisdiction is attempted, and therefore it must be rejected.

4. Since, however, taking into account also the Authority's Decision No. 5/2024, which is subsequent to the issued act of archiving the complaint in question, the Authority is, in principle, competent to assess the legality of the collection in a personal data archiving system of third parties by the data controller, with the aim of future invocation and presentation of these before a judicial/prosecutorial authority, and to conduct checks, among other things, on the method of collection of the contested personal data, reserving the right to re-examine the complaint numbered Γ/ΕΙΣ/7570/19-11-2021.

FOR THESE REASONS

The Authority

Rejects the application for review numbered Γ/ΕΙΣ/5236/14-06-2024 of A.

The Deputy President

The Secretary

Georgios Batzalexis

Irini Papageorgopoulou

3 See, for example, Council of State 1175/2013 (par. 9), 3259/2011 (par. 9), 434/2007 (par. 5), 2683/2003 (par. 5).